

THE STATE AND THE CONSTITUTION

The Concept of State

A state is a community of people, more or less numerous, permanently occupying a definite portion of territory, independent of external control and possessing an organized government to which the great body of inhabitants render habitual

Four Elements of State

1. People
2. Territory
3. Government
4. Sovereignty or independence from external control

1. People/population

- Without people there can be no State.
- The absence of population in Antarctica makes it a non-state.
- There is no specific number of people that should constitute a state; what important is ... **People must be sufficient to provide governing body and a number of persons to be governed, & of course, sufficient to support a state organization & to fulfill its international organization.**

2. Territory

The territory of the State consists of:

1. *All the lands and water embraced therein including all lakes and rivers within its boundaries & even rivers within its boundaries & even lakes & rivers which serve as boundaries.*
2. *The territorial sea, the air space, the subsoil, the seabed, the insular shelves and other submarine areas over which the state has jurisdiction or sovereignty.*

VATICAN CITY/HOLY SEE

- **VATICAN CITY**- (in Rome, Italy) has an area of 0.44 sq. km.
- **This is the smallest state in the world with a population of atleast 1000.** (826 as of 2010)
- The **Holy See** is the episcopal jurisdiction of the Catholic Church in Rome.

3. Government

- Government is a form or system of administration by which a community is managed.
- It is the agency through which the will of the state may be ascertained and its ends realized

4. Sovereignty

It is the inherent, supreme and absolute power of the state to command obedience from all its subjects and its freedom from external.

- **Internal Sovereignty**- refers to the power of the ruler or of the people to govern within the state.
- **External sovereignty or independence** – is the right of the state to pursue its aim and purposes without interference from other states.

RIGHTS OF STATE

1. **The right to independence** – right to be free from external control
2. **The right of equality** – right to enjoy similar privileges & immunities & to observe same duties under international law
3. **The right to jurisdiction** – is the power to extend its authority. This means that it has the power over its citizens, institutions and property within the confines of the state.
4. **The right of property** – is the right of the state to own, hold and use property.

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5. **The right of intercourse or the right of legation** – the right of the state to send diplomatic representatives to other countries and to receive representatives coming from other countries. This right also includes the right to refuse a person who is not acceptable to the State. Such a person is referred to as a **persona non grata** to receiving state.

EX: The Department of Foreign Affairs (DFA) declared a Panamanian diplomat who was accused of raping a 19-year-old Filipina as persona non grata.

In accordance with Article 9 of the Vienna Convention on Diplomatic Relations, Shcks should be recalled or terminated of his functions by the Panamanian government or he will accordingly be stripped of his immunities," the DFA said.

The list of Philippines PERSONA NON-GRATA

- **Alec Baldwin**, 51 year-old Emmy-winning actor, said that he was "thinking about getting a Filipino mail-order bride." This turned out to be very derogatory a statement that angered some of the Filipinos.
- **Claire Danes** was banned by former President Estrada for describing Manila as "ghastly and weird city", in an interview in Vogue magazine.
- In one scene of ABC's Desperate Housewives, Susan Mayer played by **Teri Hatcher** was going to be checked by a gynecologist but refused to be examined. She said, "Okay, before we go any further, can I check those diplomas? Coz I would just like to make sure they are not from some med school in the Philippines." For this, the government demanded for a public apology from ABC and form the actress herself.
- **Chip Tsao**, a Hongkong-based columnist, called the Philippines as a "nation of servants" in his article titled "The War At Home"
- **The Beatles** was publicly denounced by former First Lady Imelda Marcos for refusing to have dinner with the presidential family. The band, however, politely declined and explained that they were too tired to go. The Imeldific must have cried, "**The Beatles have let me down.**"

Government and State

- These are not synonymous with each other; The government is an element of the state. There can be no state without a government but there can be a government without a state.
- **State**- permanent
- **Government**- may come and go without affecting the state.

A State differ from a Nation:

A State differ from a Nation in the sense that the **state is a political** concept while **nation is a radical concept**.

- Burgess defines Nation as a population inhabiting a territory of geographic unity and having a common language & literature, a common tradition & history, common customs & consciousness of right & wrong

Differences between Nation & State

1. There can be a Nation without there being a State
2. A nation maybe made up of one or more states
3. A state connotes the presence of a government and a definite territory while these are not necessary to the making of a nation.

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THE CONSTITUTION

Constitution is the fundamental law of the land

- According to Judge Cooley - ***It is the fundamental law of the state, containing the principles upon which a government is founded, regulating the division of the sovereign powers and directing to what person each of these powers is to be exercised.***

Constitution may be classified as:

1. Democratic, autocratic, oligarchic or socialistic, depending on the type of government
2. Written or unwritten – **written** - if prepared by a Constitutional convention; **unwritten**- if composed of customs and political practices
3. 3. Flexible or rigid – flexible if it is easy to change and rigid if a convention is called to amend it.
4. 4. Granted by the ruling monarch or the product of a deliberate act of a sovereign people.

Six Parts of a Written Constitution

1. A Preamble which embodies the ideals of the state
2. A statement of territorial limits or boundaries of the state
3. Bill of rights- a statement of the fundamental civil & political rights of the people which the government pledges to safeguard
4. A statement of the organization, form and distribution of the powers of government
5. Provisions for amendatory process-whereby formal changes in the Constitution may be brought about
6. The date of the effectivity of the Constitution

DEVELOPMENT OF THE PHILIPPINE CONSTITUTION

There was no Constitution that governed the Philippines under Spanish colonial period because Spain was a Monarchy. However, Philippine was involved in the signing of the ***Cadiz Constitution of 1812***. The Filipino representative was ***Ventura de los Reyes***

During the Revolutionary Period

- **KATIPUNAN** – In 1892 Andres Bonifacio organized this not just a revolutionary society but as a revolutionary government. It had a constitution which was written by Bonifacio and the other members of the Katipunan.
- **1894 Constitution** prepared Emilio Jacinto
- **1896** –Gen. Edilberto Evangelista wrote another constitution which provided for the establishment of a ***Philippine Constitution***
- **Biak-na Bato Constitution**- written by Isabelo Artacho and Felix Ferrer which was approved by the revolutionary leaders on November 1, 1897.
- April 17, 1898- ***Makabulos Constitution*** – drafted by Gen. Francisco Makabulos of Tarlac. It called for creation of revolutionary government in Central Luzon until the return of Aguinaldo from Hongkong.
- Another constitution written by Mariano Ponce was brought by Gen. Emilio Aguinaldo upon returned from Hongkong. However, upon the advice of Ambrocio Rianzares Bautista, adopted a dictatorial government on May 24, 1898. This government proclaimed the ***Declaration of Philippine Independence at Kawit, Cavite on June 12, 1898.***

MALOLOS CONSTITUTION

- Drafted in 1898 during Malolos Congress
- Constitutional committee was headed by **Felipe G. Calderon**

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- It was promulgated by Pres. Aguinaldo on Jan. 21, 1899 at Kawit, Cavite.
- It has three branches: executive, legislative and judicial

On January 23, 1899, the **First Philippine Republic**, popularly known as the **Malolos Republic**, was inaugurated amidst colorful ceremonies at the Barasoain Church. This was also the first republic in Asia

3 BRANCHES OF THE GOVERNMENT

1. **EXECUTIVE** - President of the Republic of the Philippines Malacanang Palace
2. **LEGISLATIVE**- Law making body of the government; compose of the Congress with two houses: the House of Representatives or Lower House and the House of Senate or upper house
3. **JUDICIAL**- has the power to interpret and apply the law. It is compose of the Supreme Court with Chief justice and 14 Associate Justices and the inferior courts

CONSTITUTIONAL COMMISSION

1. CIVIL SERVICE COMMISSION
2. COMMISSION ON ELECTIONS
3. COMMISSION ON AUDIT

IMPEACHMENT- is a method provided by the Constitution through which high officials of the government with long and definite terms may be removed before their terms expire.

The officials who can be removed by impeachment are as follows:

1. President
2. Vice President
3. Justices of the Supreme Court
4. Members of the Constitutional Commissions
5. Ombudsman

Grounds for Impeachment:

1. **Culpable violation of the Constitution**-when an officer knowingly disregards its provisions.
2. **Treason**- is a crime committed by citizens who extend aid to a government or people with whom their country is at war.
3. **Bribery**- is a crime committed by a public official who receives money or gifts from other persons in the performance of an official function
4. **Betrayal of public trust**- involves actions which tend to bring the office into dispute. Abuse of authority, inexcusable negligence of duty and shameful conduct are some examples.

Sandiganbayan and Ombudsman- the present anti-graft court is known as **SANDIGANBAYAN**

An independent office of the Ombudsman has also been created, composed of the Ombudsman to be known as **TANODBAYAN**